



Cardinal Roofing & Renovations, LLC

5735 Webster Street

Dayton, OH 45414

Office: 937.576.6753

Admin@cardinalrenovations.net

www.Cardinalrenovations.net

GUTTER CONSTRUCTION AGREEMENT

DATE _____

CUSTOMER INFORMATION

BUYER

EMAIL

STREET

STATE

ZIP

CO-BUYER

PHONE NUMBER

CITY

PRIMARY RESIDENCE

☐ Yes ☐ No

Buyer(s) hereby jointly and severally agrees to purchase the products and/or services of Cardinal Roofing & Renovations, LLC ("Contractor") as listed herein, in accordance with the terms and conditions described in this Agreement, the accompanying Terms and Conditions form, and any accompanying specification sheet(s).

PROJECT SPECIFICATIONS

1. REMOVAL & DISPOSAL

- A. Remove existing gutters ☐ Yes ☐ No
B. Remove existing downspouts ☐ Yes ☐ No
C. Haul away & dispose debris ☐ Yes ☐ No

2. GUTTER PROFILE & SIZE

- ☐ A. K-Style ☐ B. Half-Round ☐ C. Box
☐ 5 in. ☐ 6 in. ☐ 7 in.

3. GUTTER MATERIAL

- ☐ A. Aluminum .027 ☐ B. Aluminum .032
☐ C. Steel ☐ D. Copper ☐ E. Other

4. GUTTER COLOR

Color _____

5. HANGERS

Hidden hangers ☐ Yes ☐ No

6. MITERS & SEAMS

- ☐ A. Strip miters ☐ B. Box miters
☐ C. Hand-mitered ☐ D. Sealed

7. DOWNSPOUTS

- ☐ A. 2x3 ☐ B. 3x4 ☐ C. Round

Color _____ Qty _____

8. DOWNSPOUT DISCHARGE

- ☐ A. Splash blocks ☐ B. Extensions
☐ C. Tie to existing

9. GUTTER PROTECTION - SHURFLO

- ☐ A. ShurFlo Flat ☐ B. ShurFlo X (ventilation)
☐ C. ShurFlo Step-Down (Quick-Screw hangers)
Finish ☐ Mill ☐ Black ☐ White ☐ Copper
☐ 5 in. ☐ 6 in.

Panels install into the gutter, not under the roof shingles, and do not void the roof warranty. Carries a 25-year transferable manufacturer warranty from US Aluminum.

☐ No gutter protection on this job

10. FASCIA & SOFFIT

- ☐ A. Fascia wrap Color _____
☐ B. Replace fascia board
☐ C. Soffit repair / replace

11. WOOD REPLACEMENT

Inspect fascia and replace rotted wood as needed

Rate \$ _____ per board (billed as an extra)

12. EXTRA STRUCTURE

- ☐ A. Garage ☐ B. Shed ☐ C. Barn
☐ D. Porch / patio cover

13. ACCESS & HEIGHT

Stories _____ ☐ Steep / limited access

Not responsible for pre-existing fascia rot or damage concealed behind existing gutters, or for re-attachment of satellite dishes and wiring.

WARRANTY

- ☐ Standard
5-Yr Cardinal workmanship
☐ Upgraded
10-Yr Cardinal workmanship

NOTES



HOA / AUTHORIZATION

HOA Approval Required: ☐ Yes ☐ No

INITIALS _____

Buyer to obtain required authorization from HOA and authorities.

PROJECT TIMELINE

The anticipated start date is _____ weeks from the date on which all HOA permissions, permits, and other contingencies necessary to complete the project are obtained, and the anticipated completion date is _____ weeks from the actual start date.

NOTES & INSURANCE CLAIM

NOTES

INSURANCE CO.

CLAIM #

Buyer(s) acknowledges that Contractor is due any and all monies received from any insurance company pursuant to an insurance claim, including overhead and profit, approved cost increases, and approved claim supplements.

INITIALS _____

Buyer(s) hereby acknowledges that Buyer(s) has read this Agreement and the accompanying Terms and Conditions, understands the terms of this Agreement, has received a completed, signed, and dated copy of this Agreement on the date first written above, and was orally advised of his/her right to cancel this transaction.

PAYMENT STRUCTURE

\$ _____ CONTRACT PRICE
\$ _____ DOWN PAYMENT
\$ _____ BALANCE DUE ON COMPLETION
\$ _____ TOTAL COST

Cash on Completion or Financed:

\$ _____ PER MONTH FOR _____ MONTHS

RIGHT TO CANCEL

You, the buyer, may cancel this transaction at any time prior to midnight of the third business day after the date of this transaction. See the attached notice of cancellation form for an explanation of this right.

INITIALS _____

SIGNATURES

Cardinal Roofing & Renovations, LLC

Buyer

Co-Buyer

PRINTED NAME

PRINTED NAME

PRINTED NAME

SIGNATURE

SIGNATURE

SIGNATURE

DATE

DATE

DATE

TERMS AND CONDITIONS

Cardinal Roofing And Renovations, LLC - 5735 Webster Street, Dayton, OH 45414 - 937.576.6753

This contract and any agreement made pursuant thereto (the "Agreement") is between Cardinal Roofing And Renovations, LLC ("Company") and the Customer(s) named in the Construction Agreement. This agreement is subject to all appropriate laws, regulations, and ordinances in the State of Ohio and these Terms and Conditions.

1. This Agreement is composed of these Terms and Conditions, the Construction Agreement, the Scope of Work Addendum, and/or any Change Orders, if applicable, and all other documents referenced in or incorporated into this Agreement.

2. Our workmanship warranties are for 5 years. The foregoing warranty is exclusive and in lieu of all other warranties, express or implied, including without limitation, any warranties of MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, and all other warranties are hereby disclaimed and excluded. Under our workmanship warranty, Company warrants that all components are installed correctly, in accordance with industry standards. Defects in materials are covered by separate manufacturer's warranties. The Company is not responsible for any damages on or below the roof due to leaks caused by excessive winds, wind-driven rain, ice, or hail during the period of the warranty. Excessive wind means 40 mph or greater. Company's warranty is nontransferable. Additional manufacturer's warranties will apply if agreed to on the face hereof.

3. Each Agreement is subject to approval of our credit department and office without exception. This Agreement and all applicable warranties shall not be assigned except by or with the written permission of the Company.

4. Should default be made in payment of this Agreement, charges shall be added from the date thereof at a rate of 1.5% per month (18% per annum), with a minimum charge of \$2.00 per month. If placed in the hands of an attorney for collections, you shall pay all attorneys' fees, costs, and legal filing fees incurred.

5. The Company shall have no responsibility for damages from rain, fire, tornado, windstorm, or other perils, as it is normally contemplated to be covered by HOMEOWNER'S INSURANCE or BUSINESS RISK INSURANCE, unless a specified written agreement be made therefore prior to commencement of the work at your residence (the "Project"). During the duration of the Project, your homeowner's insurance will be responsible for any interior damage as long as the Company has taken appropriate action to protect the roof during the repair/replacement period. The Company is not responsible under any circumstances, warranty or otherwise, for any mold, fungi, or interior damage caused by or resulting from mold or fungi, or the abatement of any said items.

6. Customer releases the Company from any liability or cause of further damage/loss due to any attempts made to secure the property from further damage/loss, such as, but not limited to: the placement or attachment of temporary tarps to the roof to protect against further damage/loss. Company shall not be liable for failure of performance due to labor controversies, strikes, fires, weather, inability to obtain materials from usual sources, or any other circumstances beyond the control of the Company, whether of a similar or dissimilar nature.

7. The quotation on the face hereof does not include expenses or charges for bond insurance premiums or costs beyond normal insurance coverage, and any such additional expenses, premiums, or costs shall be added to the amount of the Agreement.

8. Replacement of deteriorated decking, fascia boards, roof jacks, ventilators, flashing, or other materials, unless otherwise STATED IN THIS AGREEMENT, are NOT INCLUDED and will be charged as an extra, on a time and material basis.

9. IF THIS AGREEMENT IS CANCELLED BY THE CUSTOMER LATER THAN MIDNIGHT OF THE 3rd BUSINESS DAY AFTER its execution, customer shall pay to the Company thirty-five percent (35%) of the third-party proceeds awarded (known as the "RCV") as liquidated damages, gauged as a reasonable forecast of Company's damages and not as a penalty, and the Company agrees to accept such as a reasonable and just compensation for said cancellation. This Agreement CANNOT BE CANCELLED ONCE WORK IS COMMENCED on the project except by mutual written agreement of the parties.

10. ANY REPRESENTATIONS, STATEMENTS, OR OTHER COMMUNICATIONS NOT WRITTEN ON THIS AGREEMENT ARE AGREED TO BE IMMATERIAL, not relied upon by either party, and do not survive the execution of this Agreement. This Agreement may not be amended, modified, or otherwise changed except by writing executed by the parties. If any provision of this Agreement should be held to be invalid or unenforceable, the validity and enforceability of the remaining provisions of this contract shall not be affected thereby.

11. The Company's maximum liability in the event of any default by it, warranty claim, lawsuit, claim, arbitration, or any other occurrence, shall be the Estimated Cost (stated on the front page), which you agree shall be a liquidated sum. You hereby release, indemnify, and hold the Company (including its owners, employees, and agents) harmless from and against all other liabilities, claims, causes of action, damages, losses, and expenses (including attorney's fees and costs), including but not limited to, consequential or incidental damages, any property damage or personal injury incurred by you or any other party related to or arising out of the services rendered by the Company on the Project. This indemnification extends to all responsibilities and undertakings as set forth in this Agreement and all warranty exclusions as indicated in this Agreement and in the warranty provided to you by the Company.

12. The Company is not responsible for construction problems associated with your home. If pointed out to the Company, we will attempt to assist you in correcting them on a time and material basis. The Company is not responsible for any damages related to leaks from skylights unless the Company completed the skylight replacement as part of the Project. The Company will not be held responsible for slight scratching and denting of gutters, oil droplets in driveways, hairline fractures in concrete, or minor broken branches on plants, foliage, or shrubbery, or ruts in the yard. Customer understands that the Company is not liable for any damage caused by a third-party vendor, such as dumpster companies or material suppliers. Customer agrees that the Company is not liable for any damage that may be caused by vibrations to the home during installation such as fallen pictures, cracks in drywall, and/or nail pops. If there are solar panels on the roof, homeowner agrees to take all necessary steps to remove, protect, and reinstall the same; under no circumstances will the Company be responsible for damage to them during the Project. Company shall not be responsible for mismatched colors in wood or other products due to variances in stain or paint colors, wood grains, or material availability.

13. PAY PER TRADE POLICY: Customer agrees to pay in full at the completion of each trade on the project. Company reserves the right to collect payment in full per trade prior to beginning on the next trade. Company Retainage Policy: Customer agrees to pay in full at the time of the completion of each contract. The maximum allowable retainage for any punch-out will be 5% of original contract price. Payments are to be made: 10% down payment (refundable) AND Customer agrees to our percentage of completion billing policy. Company reserves the right to bill proportionately based on percentage of work complete. Customer understands that the Company may issue a stop-work order if requested progress payment is not received.

14. The Company's failure to enforce any right under this Agreement shall not be construed as a waiver of any subsequent right to enforce the same or any other right, term, or condition. If any provision of this Agreement should be held invalid or unenforceable, the validity and enforceability of the remaining provisions shall not be affected thereby.

15. ANY PERSON, COMPANY, OR ENTITY SUPPLYING LABOR OR MATERIALS FOR THIS IMPROVEMENT TO YOUR PROPERTY MAY FILE A LIEN AGAINST YOUR PROPERTY IF THAT PERSON OR COMPANY IS NOT PAID FOR THEIR CONTRIBUTIONS.

16. Special Notice: OHIO LAW CONTAINS IMPORTANT REQUIREMENTS YOU MUST FOLLOW BEFORE YOU MAY FILE A LAWSUIT OR COMMENCE ARBITRATION PROCEEDINGS FOR DEFECTIVE CONSTRUCTION AGAINST THE RESIDENTIAL CONTRACTOR WHO CONSTRUCTED YOUR HOME. AT LEAST SIXTY DAYS BEFORE YOU FILE A LAWSUIT OR COMMENCE ARBITRATION PROCEEDINGS, YOU MUST PROVIDE THE CONTRACTOR WITH A WRITTEN NOTICE OF THE CONDITIONS YOU ALLEGE ARE DEFECTIVE. UNDER CHAPTER 1312 OF THE OHIO REVISED CODE, THE CONTRACTOR HAS AN OPPORTUNITY TO OFFER TO REPAIR OR PAY FOR THE DEFECTS. YOU ARE NOT OBLIGATED TO ACCEPT ANY OFFER THE CONTRACTOR MAKES. THERE ARE STRICT DEADLINES AND PROCEDURES UNDER STATE LAW, AND FAILURE TO FOLLOW THEM MAY AFFECT YOUR ABILITY TO FILE A LAWSUIT OR COMMENCE ARBITRATION PROCEEDINGS.

By signing below, Buyer(s) acknowledges having read, understood, and agreed to these Terms and Conditions.

BUYER SIGNATURE

DATE

CO-BUYER SIGNATURE

DATE

NOTICE OF CANCELLATION**BUYER'S COPY - DETACH AND KEEP**

(enter date of transaction)

(Date)

You may cancel this transaction, without any penalty or obligation, within three business days from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within ten business days following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be cancelled.

If you cancel, you must make available to the seller at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale; or you may if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within twenty days of the date of your notice of cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail, with return receipt requested, or deliver, in person or manually, a signed and dated copy of this cancellation notice or any other written notice of cancellation, or send notice by facsimile transmission or electronic mail, to

Cardinal Roofing & Renovations, LLC (Name of seller)
at 5735 Webster Street, Dayton, OH 45414 - Admin@cardinalrenovations.net
(address, electronic mail address, or facsimile number of seller's place of business)

not later than midnight of_____
(Date)**I hereby cancel this transaction.**_____
Date_____
(Buyer's signature)

NOTICE OF CANCELLATION**SELLER'S COPY - RETURN TO CANCEL**

(enter date of transaction)

(Date)

You may cancel this transaction, without any penalty or obligation, within three business days from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within ten business days following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be cancelled.

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Cardinal Roofing & Renovations, LLC (Name of seller)
at 5735 Webster Street, Dayton, OH 45414 - Admin@cardinalrenovations.net
(address, electronic mail address, or facsimile number of seller's place of business)

not later than midnight of_____
(Date)**I hereby cancel this transaction.**_____
Date_____
(Buyer's signature)